

25STCV15537 25STCV15537

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-31

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Case Number: 25STCV15537 Hearing Date: August 31, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

RICHARD MAURICE MANNING JR.

vs.

SHARLENE DORENE

TOLLIVER, et al.

Defendants

Case

No.: 25STCV15537

Hearing Date: August 31, 2026

BLUE HILL SPECIALTY INSURANCE

Defendant-in-Intervention.

Blue Hill's

motion for leave to intervene is GRANTED.

On

5/29/2026, Plaintiff Richard Maurice Manning Jr. (Plaintiff) filed suit against Sharlene Dorene Tolliver, Uber Technologies, Inc., Rasier, LLC, Rasier-CA, LLC , and Portier, LLC, alleging negligence.

On

7/22/2026, Blue Hill Specialty Insurance (Blue Hill) moved for leave to intervene.

The

motion is unopposed.

Discussion

Blue

Hill moves for leave to intervene on the grounds that "Blue Hill is a party interested in the outcome of the action and that its insured's driver Defendant Sharlene Toliver (Defendant) cannot be located. Defendant no longer resides at her last known address and has been unresponsive to attempts to contact her via email, telephone, and in person. Blue Hill is a party which may be required, pursuant to the terms of its insurance policy, to pay any judgement entered in favor of Plaintiff, and thus is an interested party to this action." (Motion, 2: 3-8.)

CCP

section 387(d) states the following:

(1) The court

shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: (A) A provision of law confers an unconditional right to intervene. (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties;

(2) The court

may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.

After review,
the Court finds good cause exists to grant Blue Hill leave to intervene.

Based on the
foregoing, Blue Hill's motion for leave to intervene is granted.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If a party submits
on the tentative, the party's email must include the case number and must
identify the party submitting on the tentative.
If all parties to a motion submit, the court will adopt this
tentative as the final order. If the department
does not receive an email indicating the parties are submitting on the
tentative and there are no appearances at the hearing, the motion may be placed
off calendar. For more information, please contact the court clerk at (213)
633-0517.